Proposal

ASAP Service Implementation

October 27, 2025

Berkeley County, South Carolina

MissionCriticalPartners

ASAP

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Introduction Letter

October 27, 2025

Sam Gaither
Communications Chief
Berkeley County
1003 Highway 52
PO Box 6122
Moncks Corner, SC 29461

Re: Automated Secure Alarm Protocol (ASAP) Service Implementation

Dear Mr. Gaither:

Mission Critical Partners® (MCP) appreciates the opportunity to provide this proposal to Berkeley County (the County) to support an application for ASAP Implementation.

The proposed services would include implementation for The Monitoring Association (TMA) Automated Secure Alarm Protocol (ASAP). ASAP leverages the Association of Public Safety Communications Officials (APCO) and American National Standards Institute (ANSI) protocols for information exchange between alarm monitoring centers and emergency communications centers (ECCs), also known as public safety answering points (PSAPs).

Your agency must execute this ASAP Implementation Proposal and the TMA ECC Terms of Service before implementation services can begin. The TMA ECC Agreement is incorporated as Appendix A and will be delivered to you via Docusign following receipt of a purchase order or signatory. Also included is Appendix B, which includes TMA's ASAP Sole Source Justification letter for your reference.

This ASAP Implementation proposal is valid for 120 days. If you have any questions regarding the information submitted, please contact me at 920.606.9167, or via email at KarenCarlson@missioncriticalpartners.com.

On behalf of our entire team, we stand behind our goal to serve as your partner, your advocate, and your agent for innovative solutions and project success.

Sincerely,

Mission Critical Partners

Karen A. Carlson

Karen A. Carlson
Vice President and General Manager, ASAP Program

Our Commitment to Our Clients

Partnering with a firm that brings an independent, objective perspective to every engagement is our clients' top priority. We stand behind our commitment to always put the fundamental interests of our clients first.

From our inception, vendor-neutrality is a value that underpins every aspect of what we do. Our goal is to determine the most favorable solution for our clients based on their unique requirements, budget, governance structure, operations, and existing technologies. We provide a holistic perspective regarding the entire mission-critical communications ecosystem, free of bias or favoritism to any specific product or service provider. Our recommendations are always based solely on the value and the benefit provided to the client.

For clients, this approach means more control and greater visibility into the systems they ultimately are responsible for operating and maintaining, and—more importantly—a successful project that improves outcomes.

Board of Directors

R. Kevin Murray

Robert Chefitz

Bernard Bailey

Darrin J. Reilly

Nola Joyce

Statement of Services

Introduction and Background

The purpose of this Statement of Services is to outline the tasks and deliverables required to implement ASAP for improving the automation and reliability of alarm notifications between alarm monitoring centers (monitoring centers) and emergency response agencies. The goal is to streamline the process of transmitting alarm signals, reduce response times, and enhance the security and accuracy of communication.

Objectives

The objectives of implementing ASAP are as follows:

Automate the transmission of alarm data to emergency response agencies.

Improve the speed and accuracy of alarm communication.

Ensure data security and integrity during transmission.

Integrate ASAP into the existing alarm monitoring platform without disruption to services.

Scope of Work

This section details the tasks Mission Critical Partners® will complete for Berkeley County (the County) during the implementation process, with the exception of Task 3, which is identified as customer requirements.

Task 1: Establishment of Communication Points and Project Plan

- **Task 1.1**: Coordinate with the County to determine stakeholders and subject matter experts necessary to participate in the successful integration and implementation of ASAP.
- **Task 1.2**: Organize the kickoff meeting and cadence for status meetings and project deliverable expectations.
- **Task 1.3**: Provide regular status updates to all stakeholders and coordinate resources to ensure successful implementation of ASAP.
- **Task 1.4:** Identify the alarm monitoring centers planned to integrate and send alarm response requests.

Task 2: System Assessment

- **Task 2.1**: Coordinate with the County's subject matter experts to determine the necessary computer-aided dispatch (CAD) system upgrades or adjustments required to support ASAP integration.
- **Task 2.2**: Conduct an addressing data review to verify the County's addressing formats with monitoring center customer address information.
- **Task 2.3**: Conduct a CAD operations review to understand incident types and correlate to monitoring center alarm response recommendations.

Task 3: Customer Requirements

- **Task 3.1**: Assume responsibility for any costs and/or upgrades required by the CAD provider for ASAP compatibility. The ASAP implementation team can assist with discussions and coordination of technical requirements as needed.
- **Task 3.2:** Coordinate with the CAD provider to establish ASAP interface connectivity to the CAD production and training/test environment. The ASAP implementation team can assist with discussions and coordination of technical requirements and testing as needed.
- **Task 3.3:** Identify personnel to collaborate and assist the ASAP implementation team to develop policy and procedures to support ASAP integrated operations.
- **Task 3.4:** Identify personnel to collaborate and assist with monitoring center address verification and data normalization.
- **Task 3.5:** Coordinate with MCP to identify subject matter experts and assist with connectivity between the CAD interface network and the ASAP host system.
- **Task 3.6:** Provide information and coordinate with monitoring centers planned to send alarm response requests including sending and approving Traffic Allowance Letters (TAL) to monitoring centers for approval. The Monitoring Association (TMA) will record and keep signed and approved letters on file for reference.

Task 4: ASAP Integration Testing

- **Task 4.1**: Establish a test plan and extend test cases as appropriate for the County.
- **Task 4.2**: Execute testing to ensure that the County's CAD product ASAP interface conforms with the APCO/TMA ANSI 2.101.3-2021 standard.
- **Task 4.3**: Configure interfaces with emergency response agencies (e.g., police, fire departments, medical services) that support ASAP.
- **Task 4.4**: Implement data encryption to secure alarm notifications during transmission.

Task 5: Testing & Validation

- **Task 5.1**: Perform system testing to ensure the seamless transmission of alarms to first responders.
- **Task 5.2**: Verify the integrity and accuracy of transmitted data to ensure reliability.
- **Task 5.3**: Conduct a live test with emergency response agencies to ensure proper processing and response to alarms.

Task 6: Deployment & Monitoring

- **Task 6.1**: Deploy and provision ASAP broker to appropriately route monitoring center alarm response requests to the County's test and production environments.
- **Task 6.2**: Monitor system performance.
- **Task 6.3**: Provide post-deployment support to troubleshoot any issues that arise.

Deliverables

MCP will provide the following deliverables as part of the ASAP implementation project:

- **ASAP Integration Plan**: A detailed plan specifying integration steps, including configurations for each emergency response agency.
- **Test Reports**: Documentation of system tests and validation results, confirming the successful implementation of ASAP.
- **Deployment Report**: A report confirming that the ASAP integration has been successfully deployed and is functioning as expected.
- **Post-Deployment Support Plan**: A support plan for troubleshooting and system maintenance for a defined time period after deployment.

Timeline

Task	System Assessment	ASAP Integration	Testing & Validation	Deployment & Monitoring
Duration	3 Weeks	3 Weeks	3 Weeks	1 Week

Note: Schedule is an estimate, reliant on Berkeley County's CAD integration availability as well as customer network and resource availability.

Roles and Responsibilities

Client Responsibilities	ASAP/TMA Responsibilities
• Provide access to existing CAD and address data for assessment and integration. • Coordinate with relevant emergency response agencies for testing and deployment. • Ensure internal stakeholders are available for testing and troubleshooting as needed. • Provide details as outlined in the scope of work.	• Complete system and addressing assessment, integration, and testing as outlined in the scope of work. • Provide necessary technical support for ASAP integration. • Coordinate with monitoring centers for data verification, testing, and readiness. • Ensure post-deployment monitoring and support.

Success Criteria and Acceptance

The project will be considered successfully completed when:

- ASAP has been integrated and tested by Berkeley County.
- Alarm notifications are being received securely and automatically with the first monitoring center.
- All testing criteria are met, and no critical issues are identified.

Risks and Mitigation

- **Risk 1**: Integration issues with the legacy CAD system.
  Mitigation: Ensure thorough system assessment and compatibility checks before starting integration.
- **Risk 2**: CAD address data verification.
  Mitigation: Ensure that CAD data is consistent with postal address standards and that responsiveness in the event data integrity issues are identified.

Conclusion

This Statement of Services outlines the steps and requirements for the successful implementation of ASAP to improve alarm notification and emergency response times. The project will result in a more automated, secure, and effective process for dispatching emergency services—ensuring that alarms are transmitted in real-time.

Project Team

With more than 225 staff members, MCP's specialized professionals are integral members of our team. Each team member brings a unique skill set and depth of experience in technology migration services.

Bill Toth, ASAP Implementation Director and Project Manager, will be assigned to oversee the strategic management, testing, integration, rollout, and ongoing support of the ASAP system. An ASAP Implementation Specialist will also be assigned to support your project, ensuring successful implementation and testing of ASAP.

Pricing

Professional services outlined in the scope of work will be provided for **a fixed fee of $10,720**. The fee is based on the assumption that all services will be performed remotely. If onsite resources are requested, travel expenses will be billed separately.

Mission Critical Partners will invoice Berkeley County based on the following milestone payment schedule. Invoices shall be reviewed and paid within 30 days.

Table 1: Payment Schedule

Phase	% of Fee	Fee
Phase 1: Agreement Signing	10%	$1,072
Phase 2: Network and CAD Integration	40%	$4,288
Phase 3: Integration Test and Data Validation	40%	$4,288
Phase 4: Completion – Productive Use	10%	$1,072

Based on MCP's current understanding of what is to be accomplished, the pricing identified represents an estimate of the work anticipated to achieve project success. MCP's priority is for this project to be successful for Berkeley County.

Signature Page

Mission Critical Partners® (MCP) is prepared to execute the scope of work set forth in this ASAP Implementation proposal, subject to the Appendix A TMA ASAP Service Terms of Service for ECC's, in exchange for the fees identified above upon notification from Berkeley County as evidenced by authorization to proceed via signature below or receipt of a purchase order, and a signed TMA ECC Agreement. MCP will schedule implementation efforts promptly upon receipt of such notification. Any additional services not included in this proposal will be performed, upon agreement of the parties, at MCP's then-current fee schedule.

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their duly authorized representatives as of the date set forth below.

Agreed to and Accepted

Berkeley County, South Carolina

_____

Name:

Title:

Date: _____

Mission Critical Partners, LLC

_____

Name: John L. Spearly

Title: Director of Contract Administration

Date: October 27, 2025

Appendix A: TMA ECC Agreement/Terms of Service

The below ASAP Service Terms of Use will be sent via Docusign to your agency ASAP point of contact that this proposal is addressed to. Your Docusign signature sets in motion the activities to bring an ECC's CAD system onto ASAP. The completed and submitted form is needed before ASAP can officially engage with your agency. Please fill in the information that is delimited by parentheses.

ASAP Service Terms of Use

The ASAP Service Terms of Use Agreement (the "Agreement") is made and executed by and between TMA ASAP Service, LLC ("ASAP") and the agency identified below in the signature block (the "Agency" or "you", as applicable), effective as of the date of the last signature.

ASAP, a wholly-owned subsidiary of The Monitoring Association, a national trade association representing the professional alarm monitoring industry, operates a communication method to digitally transmit messages between Monitoring Centers and PSAPs, called the Automated Secure Alarm Protocol Service (the "ASAP Service").

Agency desires to utilize the ASAP Service for the receipt of alarm signals from Monitoring Centers (as defined herein), and ASAP is willing to permit Agency to utilize the ASAP Services for such purposes pursuant to the terms and conditions which follow.

The provisions contained within Agreement govern all use by your Agency of the ASAP Service and you are agreeing to the terms contained herein unless a separate written agreement is in effect that specifically governs the subject matter hereof.

Services are offered subject to all of the terms and conditions contained herein and all other operating rules, policies and procedures that may be published from time to time by ASAP (collectively, this "Agreement"), which are made a part of and incorporated by reference herein.

USE OF THE SERVICES IS SUBJECT TO THE TERMS SET FORTH BELOW. BY ACCESSING OR USING THE SERVICES, YOU ARE CONSENTING TO BE BOUND BY THIS AGREEMENT. IF YOU DO NOT AGREE TO ALL OF THESE TERMS, DO NOT USE THE SERVICES.

If you are entering into this Agreement on behalf of an Agency, you represent that you have the authority to bind such Agency to this Agreement. If you do not have such authority, or if you do not agree with these terms and conditions, you may not use or log in to the Services.

By agreeing to the terms of this Agreement, you represent and warrant that your registration and use of the Services comply with all applicable laws and regulations.

1. Definitions

Wherever used in this Agreement, the following capitalized terms shall have the meanings set forth below:

"Agency" means a Public Safety Answering Point (PSAP) or Emergency Communications Center (ECC), as defined in the rules of the Federal Communications Commission (FCC), requesting access to the Service.

"Agency Systems" means any product, service or solution to which any ASAP Service will interface, integrate, or to which ASAP shall access in order to provide any ASAP Service.

“APIs” means the Application Programming Interfaces made available to an Agency by ASAP to access the Services.

“ASAP Service(s)” or “Service(s)” means ASAP’s programs, platforms, or other products or services, including but not limited to the ASAP APIs, ASAP Direct CAD Integrated, ASAP View, and ASAP Nlets Service.

“ASAP View” means ASAP’s browser-based solution that allows for the receipt and viewing of digital dispatch from Monitoring Centers for alarm emergencies in an Agency’s jurisdiction by Authorized Personnel to view and process alarm notifications without CAD integration.

“Authorized Personnel” means those individuals authorized by Agency to access the ASAP Service.

“Digital Dispatches” means alerts sent by Monitoring Centers for specific critical events such as intrusions, suspected burglaries, robberies, hold-ups, fires, medical events, car crashes. Digital Dispatch, the alert notifying you of an applicable emergency event, may be displayed concurrently with a phone call or other method.

“Monitoring Center” means an alarm monitoring center and other third parties that are authorized by ASAP to digitally transmit alarm event data to Agencies via the ASAP Service.

2. Description of Services

ASAP shall provide Agency, subject to the terms and conditions of the ASAP ECC Service Agreement and the additional agreements referenced herein, with those ASAP Services as are selected by Agency or may be selected in the future. The terms of this Agreement (including the Traffic Authorization as set forth in Section 3.5 of this Agreement, and any other agreements referred to herein) shall prevail over the terms of any purchase order or other document provided by Agency unless signed by an authorized representative of ASAP.

3. Use of the ASAP Service

3.1 License

a. ASAP grants Agency a limited, non-exclusive, non-transferable license to use the ASAP Service in accordance with the terms of this Agreement. All rights not expressly granted to Agency are reserved by ASAP and its licensors.

b. The license permits access to and use of the ASAP Service solely by Agency’s Authorized Personnel and only for the purpose directly related to Agency’s internal operations in support of emergency response.

3.2 Authorized Use

Agency is authorized to receive and process alarm event data transmitted through the ASAP Service solely for the purpose of requesting and coordinating emergency response.

Agency is specifically requesting data to be presented through the ASAP Service and receipt of such data may require changes to your operational workflow when responding to an emergency. ASAP shall be held harmless for any liability arising from such use or failure to use.

Agency acknowledges that ASAP is only transmitting data, not originating data; therefore, ASAP cannot guarantee the accuracy of data provided or originated by a third party and shall be held harmless for any liability arising from any use or reliance on such data.

Agency acknowledges that ASAP will make reasonable efforts to digitally display requests for dispatch of emergency services and that a phone call request may not be placed.

Agency acknowledges that Authorized Personnel have been trained on how to use and respond to ASAP Services.

Agency acknowledges that ASAP does not warrant or represent that all digitally displayed requests shall be free of error. Agency further acknowledges that an act, omission, or failure may occur that prevents notification of a request

from being received by Agency. Where an error, act, omission, or failure occurs that prevents notification of a request from being received, ASAP shall not be held liable.

Agency acknowledges that false alarms may occur and that ASAP makes no warranties or representations, express, implied, or otherwise, as to the validity, accuracy, completeness, or performance of a request for dispatch displayed through ASAP. ALL DATA RELATING TO THE ASAP SERVICE IS PROVIDED "AS IS."

Agency agrees to share certain data, including, but not limited to, the receipt of requests for dispatch of emergency services, and/or records of actions taken by Agency with ASAP, Monitoring Centers and other third-parties. ASAP may monitor and collect configuration, performance, usage, and consumption data relating to the use of ASAP Services, and may monitor Agency's use of the ASAP Services, in each case: (a) to facilitate the delivery of the ASAP Services, (b) to improve the ASAP Services and provide anonymized analytics, and (c) to ensure compliance with the terms of this Agreement.

Agency agrees that ASAP may use Agency's name on company materials indicating agencies that utilize the Services and are capable of receiving Digital Dispatches.

3.3 Access Credentials

ASAP will issue access credentials to Agency for use of the ASAP Service.

Agency is responsible for:
• Keeping credentials secure
• Limiting use of credentials to Authorized Personnel only
• Promptly reporting any compromise of access credentials to ASAP

Credentials may not be shared outside Agency's Authorized Personnel.

If any credentials are lost, compromised, or accessed by unauthorized individuals, Agency must notify ASAP without delay. ASAP reserves the right, in its sole discretion, to deactivate and reissue credentials for security purposes. Agency is also responsible for managing access rights for its Authorized Personnel. Sharing credentials outside of Authorized Personnel is strictly prohibited.

3.4 Compliance Requirements

Agency agrees to comply with local, state, and federal laws and regulations applicable to emergency communications and ASAP implementation guidelines periodically issued by ASAP or its designee.

ASAP reserves the right to monitor Agency use of the Service to ensure compliance. ASAP reserves the right to monitor Agency's use of the ASAP Service to verify compliance with this Agreement and applicable implementation standards. Such monitoring shall be conducted in a reasonable manner in accordance with applicable laws.

3.5 Traffic Authorization

Agency hereby authorizes the initiation and ongoing flow of alarm event messages and related Digital Dispatches via the ASAP Service between Agency Systems (including Agency's designated CAD system) and any Monitoring Center authorized by ASAP to transmit to Agency's jurisdiction.

Agency understands and agrees that transmission of messages under this Traffic Authorization will commence and continue only with respect to Monitoring Centers that TMA (or its designee) has approved or certified for integration with the ASAP Service.

Agency may modify or rescind this Traffic Authorization, after attempting to resolve any issue(s) with TMA support, by providing written notice to TMA. Upon receipt of such notice, TMA will use commercially reasonable efforts to implement such changes promptly.

The individual executing this Agreement on behalf of Agency represents and warrants that they have

the requisite authority to grant the foregoing authorization on the Agency's behalf.

4. Responsibilities of Agency

4.1 Data Handling

Agency must process incoming alarm data in accordance with local public safety protocols and must not alter or repurpose the data for unauthorized use.

4.2 System Integrity

Agency shall maintain internet-connected systems with browser access in good working order to ensure the reliable and secure operation of the ASAP Service.

4.3 Support and Maintenance

Agency shall promptly notify the ASAP Operations Team or designated support contact of any issues that impact the receipt or processing of alarm event data. The ASAP Operations Team may be reached at helpdesk@asap911.org or phone: 888-291-9513.

4.4 Roles and Responsibilities of Agency

Agency shall provide access and dedicated resources to support integration of the Services with Agency Systems. Agency shall assign an adequate number of Authorized Personnel to perform the tasks necessary for the successful provision of the Services. Agency shall be responsible for the costs of training such Authorized Personnel, including the time necessary for such Authorized Personnel to become familiar with the Services. Agency is responsible for the accuracy of the information transmitted to the Services and will take commercially reasonable actions to adequately audit any such information transmitted to the Services; it being understood that ASAP is not responsible for the accuracy of such information.

5. Limitations of Liability

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW:

a. ASAP SHALL NOT BE RESPONSIBLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, OR CONSEQUENTIAL DAMAGES, NOR FOR ANY LOSS OF PROFITS, INCOME, DATA, OR DATA USAGE, THAT MAY RESULT FROM OR BE CONNECTED TO AGENCY'S USE OF, INABILITY TO USE, OR RELIANCE ON THE ASAP SERVICE, REGARDLESS OF THE LEGAL THEORY INVOLVED, INCLUDING CONTRACT, TORT (INCLUDING NEGLIGENCE), STATUTE, OR OTHERWISE. AGENCY ACKNOWLEDGES AND AGREES THAT ASAP DOES NOT PROVIDE OR MANAGE THE DISPATCH OF EMERGENCY MEDICAL, FIRE, OR LAW ENFORCEMENT SERVICES, AND ASAP SHALL NOT BE LIABLE FOR ANY FAILURE TO TRANSMIT, DELIVER, OR ACT UPON ANY SUCH NOTIFICATION BY THOSE AGENCIES.

B. IN NO EVENT SHALL ASAP, THE MONITORING ASSOCIATION, INC., ITS AFFILIATES, OR ANY OF THEIR RESPECTIVE LICENSORS BE HELD LIABLE FOR DAMAGES IN EXCESS OF THE TOTAL AMOUNT PAID DIRECTLY BY AGENCY TO ASAP FOR USE OF THE ASAP SERVICE DURING THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM, OR TWO HUNDRED FIFTY DOLLARS ($250), WHICHEVER IS GREATER. THIS LIMITATION APPLIES TO ALL CLAIMS, WHETHER BASED IN CONTRACT, TORT, STATUTE, OR ANY OTHER LEGAL THEORY, AND REGARDLESS OF THE NATURE OF THE LOSS OR DAMAGE INCURRED BY AGENCY.

6. Disclaimer of Warranties

THE ASAP SERVICE IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT WARRANTY OF ANY KIND. TO THE FULLEST EXTENT PERMITTED BY LAW:

A. ASAP EXPRESSLY DISCLAIMS ALL WARRANTIES OF ANY KIND—WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE—INCLUDING, WITHOUT LIMITATION, ANY IMPLIED

WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT.

B. ASAP DOES NOT GUARANTEE THAT ACCESS TO OR OPERATION OF THE ASAP SERVICE WILL BE CONTINUOUS, ERROR-FREE, OR SECURE. ASAP MAKES NO PROMISES OR ASSURANCES REGARDING ACCURACY, COMPLETENESS, TIMELINESS, OR RELIABILITY OF ANY DATA OR INFORMATION TRANSMITTED THROUGH THE ASAP SERVICE.

7. Ownership and Intellectual Property

a. The ASAP Service, including all software, data formats, documentation, and related materials, is the intellectual property of ASAP. No rights or licenses are granted except as expressly set forth in Section 3.1 of this Agreement.

b. Agency acknowledges and agrees that ASAP may use aggregated, anonymized data derived from Agency's usage of the ASAP Service to enhance system performance, conduct analytics, and support product development. Such use shall not include identifiable information.

8. Confidentiality

Agency acknowledges and agrees that all data exchanged through the ASAP Service, including alarm events and Agency operational information (collectively "Confidential Information"), shall be treated as confidential. Agency shall exercise a reasonable degree of care in the protection of such Confidential Information and implement appropriate safeguards to protect the Confidential Information in accordance with applicable laws.

9. Termination

This Agreement shall continue for the duration of Agency's use of the ASAP Service unless earlier terminated as provided in this Section. ASAP reserves the right in its sole discretion to terminate Agency's access to the ASAP Service with or without cause upon reasonable notice. Agency may discontinue participation in the use of ASAP Service by providing 30 day written notice to ASAP. Access to the ASAP View Service may also be revoked if Agency is repeatedly notified (three escalated notifications) that their users are not attending to incoming alarm events in the ASAP View portal in a timely manner, which may compromise the intended benefits of the Service.

10. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the Commonwealth of Virginia, without regard to its conflict of laws principles.

11. Indemnification

AGENCY AGREES TO INDEMNIFY, DEFEND, AND HOLD HARMLESS ASAP AND ITS AFFILIATES, DIRECTORS, OFFICERS, EMPLOYEES, AGENTS, AND SUBCONTRACTORS FROM AND AGAINST ANY AND ALL CLAIMS, LOSSES, DAMAGES, LIABILITIES, COSTS, AND EXPENSES (INCLUDING REASONABLE ATTORNEYS' FEES) ARISING OUT OF OR RELATED TO AGENCY'S USE OR MISUSE OF THE ASAP SERVICE, VIOLATION OF THIS AGREEMENT, FAILURE TO COMPLY WITH APPLICABLE LAW, OR ANY ACTS OR OMISSIONS INCLUDING, WITHOUT LIMITATION, NEGLIGENCE.

12. Service Availability and Updates

ASAP may, from time to time, update the ASAP Service to improve functionality or address technical needs. While ASAP endeavors to minimize disruptions, Agency acknowledges that occasional maintenance or downtime may occur, and ASAP shall not be liable for any resulting delays.

13. Survival

Sections regarding confidentiality, limitations of liability, ownership and intellectual property, and indemnification shall survive the termination of this Agreement.

14. Force Majeure

ASAP shall not be liable for any delay or failure in performance arising out of or resulting from

causes beyond its reasonable control, including but not limited to, acts of God, electrical or power outages, telecommunications failures, cyberattacks, earthquakes, storms, or other elements of nature, riots, acts of terrorism, or war.

15. Assignment

Agency may not assign or transfer this Agreement in whole or in part, without the prior written consent of ASAP. Any attempted assignment in violation of this provision shall be null and void. ASAP may freely assign this Agreement in connection with a merger, acquisition or sale of all or substantially all of its assets.

16. Waiver and Severability

The failure of either party to enforce any provision of this Agreement shall not constitute a waiver of that provision or any other. If any provision is found to be unenforceable or invalid under applicable law, it shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall remain in full force and effect.

17. Entire Agreement

This Agreement constitutes the entire understanding between Agency and ASAP with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, whether written or oral, relating to such subject matter. All changes or amendments to this Agreement must be in writing and signed by both parties to be binding on the parties.

18. Notice

Notices posted on ASAP's website are effective upon posting. Notices by email are effective on the sent date of the email. Notices by personal delivery are effective immediately. Notices to Agency shall be provided to the address on file with ASAP. Notices to ASAP shall be provided to TMA ASAP Services, LLC, c/o The Monitoring Association. 7918 Jones Branch Drive, Suite 220, McLean, VA 22102-3319 or copy to info@asap911.org.

[Signature page follows]

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed below by their duly authorized representatives.

AGENCY _____
Signature: _____
Agency Representative Name: _____
Title: _____
Email Address: _____
Date Signed: _____
TMA ASAP SERVICES LLC
Signature: _____
Name: Whitney A. Doll
Title: Chief Executive Officer
Date Signed: _____

Appendix B: TMA Sole Source Letter

Re: ASAP Sole Source Justification

To Whom It May Concern:

The Monitoring Association (TMA) announced in mid 2024, a groundbreaking partnership with Mission Critical Partners (MCP) to power the growth and innovation of its Automated Secure Alarm Protocol (ASAP) Service. This collaboration is driven by the critical public safety need for seamless ASAP implementation and MCP's unmatched expertise and dedication in managing services for the 911 community and ensure that transitions in projects such as these are seamless for the Agency.

- Under a multi-year managed services agreement with TMA, MCP will spearhead the deployment of ASAP's cutting-edge, cloud-based platform.
- These competencies are based on decades of experience. MCP's implementation specialists collectively bring over 75 years of public safety industry and 911-related experience.
- MCP is currently the sole service provider capable of delivering ASAP implementation and support services. Other providers may support this effort in the future.
- MCP's proven track record in managing complex projects ensures potential risks and roadblocks are effectively addressed.

This partnership underscores TMA's commitment to advancing public safety through innovative solutions. MCP's industry-leading knowledge and capabilities make them the only provider equipped to implement and support a project of this scale and complexity. Together, TMA and MCP are ensuring that public safety agencies can transition seamlessly to the next generation of ASAP technology, with no disruption to critical operations.

We are excited about the future this partnership will unlock for the 911 community and the public safety.

If you have any questions about ASAP Implementation Services with Mission Critical Partners' services, please contact 920.606.9167 or KarenCarlson@asap911.org.

Sincerely,

The Monitoring Association

Celia T Besore

Digitally signed by Celia T Besore Date: 2025.01.16 18:40:32 -05'00'

Celia T. Besore, MBA, FASAE, CAE Chief Executive Officer (CEO)

The Monitoring Association